

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: May 22nd, 2026

Posted: May 21st, 4:30 PM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department C16 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at [Civil Appearance Procedure and Information | Superior Court of California | County of Orange \(occourts.org\)](https://www.occourts.org); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#	Case Name	Tentative
50	Magana vs. Casa Pacifica Nursing Center, LLC 25-01460546	Motion to Compel Arbitration & Motion to Compel Arbitration Defendant Casa Pacifica Nursing Center, LLC dba Harbor Villa Care Center’s (“Casa Pacifica”) petition to compel arbitration and stay action is DENIED. Defendant Casa Pacifica petitions for order compelling Plaintiff to submit his claims to arbitration and staying the action pending resolution of the arbitration. A. Arbitration Agreement The Resident-Facility Arbitration Agreement (“Arbitration Agreement”) provides, in relevant part, as follows: Article 1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently or incompetently rendered, will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration. Article 2. It is further understood that any dispute between Resident and <u>Casa Pacifica Nursing Center, LLC Harbor Villa Care Center</u>, its owners, operators, officers, directors, administrators, staff, employees, agents, and any management company and/or consulting company that provides services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, including Cambridge Healthcare Services, and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents (collectively referred to herein as “Facility”), including any action for injury or death arising from negligence, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections and Health and Safety Code section 1430), will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. The parties to this agreement are giving up their Constitutional right to have all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration. Article 7. This Agreement relates to the Resident’s admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors. The parties, therefore, agree that the underlying admission to the Facility involves interstate commerce. Accordingly, this Agreement is to be governed by the Federal Arbitration Act and the procedural rules set forth in the Federal Arbitration Act (9 U.S.C. Sections 1-16) shall govern any petition to compel arbitration and the selection of an arbitrator, should the parties be unable to mutually agree upon the appoint of a single neutral arbitrator. The arbitration shall be

		venued in a location convenient for all parties, normally the county where the Facility is located. (Declaration of Jeffrey S. Healey (“Healey Decl.”), ¶ 2, Ex. A [Arbitration Agreement].) The Arbitration Agreement broadly covers all claims relating to the provision of care, treatment, and services, including claims for injury or death arising from negligence, intentional torts, and statutory causes of action, including claims under the California Welfare and Institutions Code and Health and Safety Code section 1430. (Id., Arbitration Agreement, Article 2.) The claims asserted in this action therefore fall within the scope of the Agreement. (See Complaint.) The Arbitration Agreement also expressly provides that it is governed by the Federal Arbitration Act (“FAA”). Accordingly, the FAA applies. (Id., Arbitration Agreement, Article 7.) The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339 (“<i>Concepcion</i>”).) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Concepcion, supra</i>, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the petitioner meets their initial burden, the burden of production shifts to the party opposing the petition to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement’s existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need
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		not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (<i>Id.</i>, at p. 992.) Defendant Casa Pacifica met its initial burden by submitting a copy of the Arbitration Agreement purportedly signed by Plaintiff, which encompasses Plaintiff’s claims for elder abuse and neglect, violation of the Resident’s Bill of Rights, and negligence. (Declaration of Jeffrey S. Healey (“Healey Decl.”), ¶ 2, Ex. A.) The burden therefore shifted to Plaintiff to produce admissible evidence creating a factual dispute regarding the agreement’s existence or authenticity. Plaintiff argues no valid agreement to arbitrate was formed because there was no knowing consent or mutual assent. Plaintiff submits his declaration attesting that he does not speak English, the arbitration agreement was entirely in English, and he does not recall receiving, reviewing, or signing the arbitration agreement or having arbitration explained to him. (Opposition, Declaration of Martin Ramos Magana (“Magana Decl.”), ¶¶ 2-6, 11-12.) Limited English proficiency and a claimed failure to recall signing an arbitration agreement generally do not invalidate an otherwise enforceable agreement. (See <i>Bolanos v. Khalatian</i> (1991) 231 Cal.App.3d 1586, 1590—immaterial that patient claimed inability to read English, the equivalent of a 5th grade education, and did not remember signing the document; see also <i>Caballero v. Premier Care Simi Valley LLC</i> (2021) 69 Cal.App.5th 512, 519—patient has initial burden to request assistance if unable to read or understand arbitration agreement.) However, Plaintiff adequately challenges the authentication of the purported agreement because Plaintiff’s signature on the Arbitration Agreement appears to be electronic, yet Defendant Casa Pacifica provides insufficient evidence regarding the execution and authentication of the electronic signature. Although Defendant Casa Pacifica submitted declarations supporting the existence of the Arbitration Agreement with its moving papers, the declarations do not explain the method of execution and/or how Plaintiff’s assent was verified. Jeffrey S. Healey, defense counsel, attempts to authenticate the document as one obtained from Defendant’s records, but does not establish personal knowledge regarding Plaintiff’s execution of the agreement or the procedures used to obtain the signature. (See Healey Decl., Ex. A.) Javier Rodriguez, the admissions coordinator for Harbor Villa Care Center, attests that on or about December 23, 2023, he met with Plaintiff during the admissions process. (Motion, Declaration of Javier Rodriguez (“Rodriguez Decl.”), ¶ 2.) Rodriguez states he explained the arbitration agreement to Plaintiff and/or Plaintiff’s agent in Spanish. (<i>Ibid.</i>) Rodriguez also states he explained that the arbitration agreement was not a precondition to admission, was optional, and could be rescinded in writing within 30 days of signing. (<i>Id.</i>, ¶ 3.) Following this explanation, Plaintiff and/or Plaintiff’s agent agreed to and signed the agreement. (<i>Id.</i>, ¶ 4.) However, Rodriguez does not explain the method used to obtain the signature, which appears electronic, whether Plaintiff personally reviewed the agreement, whether Plaintiff was provided a copy of the agreement, or the
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		substance of the explanation allegedly provided in Spanish. Additionally, Rodriguez’s declaration does not identify the agreement attached to defense counsel’s declaration as the agreement Rodriguez explained and/or Plaintiff signed. Defendant Casa Pacifica, in reply, submitted no additional evidence regarding the electronic execution of the agreement or Plaintiff’s assent thereto. Accordingly, Plaintiff submitted sufficient evidence to create a factual dispute regarding the authenticity and execution of the Arbitration Agreement, thereby shifting the burden back to Defendant to prove the authenticity of the purported signature by a preponderance of the evidence. On the present record, Defendant Casa Pacifica has not met that burden. Moreover, even assuming Defendant Casa Pacifica had established the existence and execution of a valid Arbitration Agreement, the Agreement appears unconscionable and therefore unenforceable. The Arbitration Agreement contains a fee-splitting provision requiring equal allocation of arbitration costs despite evidence that Plaintiff is indigent and unable to afford potentially substantial arbitration fees and costs. The potentially prohibitive arbitration costs, together with the circumstances surrounding execution of the Arbitration Agreement, support findings of both procedural and substantive unconscionability. (See Court’s Tentative Ruling on Defendant 1030 Warner Avenue I Opco LLC dba South Coast Post Acute’s Petition to Compel Arbitration.) Accordingly, the motion to compel arbitration also would be denied on this independent basis. Accordingly, Defendant Casa Pacifica Nursing Center, LLC dba Harbor Villa Care Center’s petition to compel arbitration is DENIED. Moving Party to give notice. Defendant 1030 Warner Avenue I Opco LLC dba South Coast Post Acute’s (“South Coast Acute”) petition to compel arbitration and stay action is DENIED. Defendant South Coast Acute petition for an order compelling Plaintiff to submit his claims to arbitration and staying the action pending resolution of the arbitration. The Arbitration Agreement The Arbitration Agreement broadly covers all claims relating to any action for injury or death arising from care, treatment and services provided by Defendant Post Acute, including negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430). (Declaration of Jennifer Tiempos (“Tiempos Decl.”), ¶ 4, Ex. 1 [Arbitration Agreement], ¶¶ 1.1, 2.1.) The Arbitration Agreement also expressly provides that it is governed by the Federal Arbitration Act (“FAA”). Accordingly, the FAA applies. (Id., Arbitration Agreement, Article 7.)
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		Defendant requested that Plaintiff submit his claims to arbitration, but Plaintiff declined. (Declaration of Sugam Langer (“Langer Decl.”), ¶4, Ex. C) Motion to Compel Arbitration The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339 (“<i>Concepcion</i>”).) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Concepcion, supra</i>, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) Agreement to Arbitrate “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the petitioner meets their initial burden, the burden of production shifts to the party opposing the petition to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (<i>Id.</i>, at p. 992.) Defendant South Coast Acute met its initial burden by submitting a copy of the Arbitration Agreement purportedly signed by Plaintiff, which encompasses Plaintiff’s claims for elder abuse and neglect, violation of the Resident’s Bill of
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		Rights, and negligence. (Declaration of Miguel Hurtado (“Hurtado Decl.”), ¶¶ 5-6, Ex. 1.) The burden therefore shifted to Plaintiff to produce admissible evidence creating a factual dispute regarding the agreement’s existence or authenticity. Plaintiff submits his declaration attesting that he does not speak English, the arbitration agreement was entirely in English, and he does not recall receiving, reviewing, or signing the Arbitration Agreement or having it explained to him. (Opposition, Declaration of Martin Ramos Magana (“Magana Decl.”), ¶¶ 2-6, 11-12.) He argues that no valid agreement to arbitrate was formed because there was no knowing consent or mutual assent. Defendant South Coast Acute, however, replies that limited English proficiency and a claimed failure to recall signing an arbitration agreement generally do not invalidate an otherwise enforceable agreement. (See <i>Bolanos v. Khalatian</i> (1991) 231 Cal.App.3d 1586, 1590—immaterial that patient claimed inability to read English, the equivalent of a 5th grade education, and did not remember signing the document; see also <i>Caballero v. Premier Care Simi Valley LLC</i> (2021) 69 Cal.App.5th 512, 519—patient has initial burden to request assistance if unable to read or understand arbitration agreement.) In support of its position, Defendant South Coast Acute submitted the declaration of Jennifer Tiempos, who worked as Assistant Director of Admissions from August 24, 2023 through December 1, 2025. (Declaration of Jennifer Tiempos, ¶ 2.) Tiempos attests that she met with Plaintiff on November 23, 2023, spoke with him in Spanish, and reviewed the Arbitration Agreement with him line-by-line. (Tiempos Decl., ¶ 3.) Tiempos further states that Plaintiff signed the Arbitration Agreement attached to the moving papers. (Id., ¶ 4, Ex. 1 [Arbitration Agreement].) Defendant also submitted a declaration from Miguel Hurtado, the Administrator and facility representative, who states he is familiar with Defendant’s admission and arbitration agreements maintained in the ordinary course of business. (Hurtado Decl., ¶¶ 1-2, 5-6, Ex. 1 [Arbitration Agreement].) Hurtado attests that the Arbitration Agreement, along with the DocuSign Certificate of Completion, is a true and correct copy of Plaintiff Martin Ramos Magana’s Arbitration Agreement, which was signed by Plaintiff and prepared and maintained in the ordinary course of business by authorized persons at or near the time of the act, condition, or event. (Id., ¶ 6, Ex. 1.) On this record, Plaintiff’s claimed lack of recollection and limited-English arguments, without more, are insufficient to overcome Defendant’s prima facie showing regarding the existence and authenticity of the Arbitration Agreement. Although Plaintiff disputes mutual assent, Plaintiff does not deny the signature is his, submit evidence suggesting the signature was forged or unauthorized, or otherwise present evidence sufficient to create a material factual dispute. (See <i>West v. Solar Mosaic LLC</i>, <i>supra</i>, 105 Cal.App.5th at p. 992.) Unconscionability Plaintiff also contends that the Arbitration Agreement is unenforceable because it is unconscionable. The doctrine of unconscionability refers to “an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.” (<i>Sonic-Calabasas A, Inc. v. Moreno</i> (2013) 57
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		Cal.4th 1109, 1133.) It consists of both procedural and substantive components – “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (<i>Ibid.</i>) In order to be unenforceable due to unconscionability, “[procedural and substantive unconscionability] must both be present.” (<i>Armendariz v. Found Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal.4th at p. 114, quoting <i>Stirlen v. Supercuts, Inc.</i> (1997) 51 Cal.App.4th 1519, 1533; see <i>Wherry v. Award, Inc.</i> (2011) 192 Cal.App.4th 1242, 1246 [“To be voided on [unconscionability] ground[s], the agreement must be both procedurally and substantively unconscionable.”]) However, “they need not be present in the same degree.” (<i>Armendariz v. Found Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal.4th 83, 114; <i>Parada v. Superior Court</i> (2009) 176 Cal.App.4th 1554, 1570.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (<i>Armendariz v. Found Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal.4th 83 at p. 114.) “The party resisting arbitration bears the burden of proving unconscionability.” (<i>Pinnacle Museum Tower Ass’n v. Pinnacle Market Dev. (US), LLC</i> (2012) 55 Cal.4th 223, 247.) <u>Procedural Unconscionability</u> Procedural unconscionability concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It focuses on the factors of surprise and oppression. (<i>Kinney v. United Healthcare Servs.</i> (1999) 70 Cal.App.4th 1322, 1329.) These factors “include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.” (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 126-127.) Thus, the Supreme Court has instructed courts to first determine whether an arbitration agreement is adhesive. (See <i>Armendariz v. Found. Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal. 4th 83, 114–15.) “Oppression generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (<i>Carmona v. Lincoln Millennium Car Wash, Inc.</i> (2014) 226 Cal.App.4th 74, 84, quotations and citations omitted.) Plaintiff contends the Arbitration Agreement is procedurally unconscionable because it was presented in an oppressive and adhesive manner, without any meaningful opportunity to negotiate its terms.
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		The circumstances surrounding presentation and execution of the Arbitration Agreement support at least some degree of procedural unconscionability. The agreement was presented during the admissions process while Plaintiff required ongoing nursing care, the agreement was entirely in English despite Plaintiff's alleged inability to speak English, and there is no evidence Plaintiff had any meaningful opportunity to negotiate the agreement's terms. Additionally, Plaintiff likely would have been surprised by the high arbitral fees and costs, as they are neither disclosed in the Arbitration Agreement nor readily ascertainable. (See Declaration of Diana Connaughton ("Connaughton Decl."), ¶¶ 2-4 [opining that Plaintiff would likely incur arbitrator fees ranging from \$16,665 to \$25,000].) " 'While arbitration may be within the reasonable expectations of consumers, a process that builds prohibitively expensive fees into the arbitration process is not. [Citation.]' " (<i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 628.) The degree of procedural unconscionability is somewhat mitigated, however, by evidence that the Arbitration Agreement was a stand-alone agreement, expressly stated that arbitration was not a condition of admission, provided a 30-day rescission period, and was allegedly explained to Plaintiff in Spanish prior to execution. <u>Substantive Unconscionability</u> To be invalid, the arbitration agreement must also be substantively unconscionable. "Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh." (<i>Carmona v. Lincoln Millennium Car Wash, Inc.</i>, <i>supra</i>, 226 Cal.App.4th at p. 85, quotations and citations omitted.) "A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to 'shock the conscience.'" (<i>Ibid.</i>) The "paramount consideration" is the mutuality of the obligation to arbitrate. (<i>Nyulassy v. Lockheed Martin Corp.</i> (2004) 120 Cal.App.4th 1267, 1287.) "Substantive unconscionability focuses on the one-sidedness or overly harsh effect of the contract term or clause." (<i>Harper v. Ultimo</i> (2003) 113 Cal.App.4th 1402, 1406-1407.) An arbitration agreement "lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences." (<i>Armendariz v. Found Health Psychcare Servs., Inc.</i>, <i>supra</i>, 24 Cal.4th at p. 120.) Plaintiff argues the Arbitration Agreement is substantively unconscionable because the potentially substantial arbitration costs and fee-sharing provisions would impose an insurmountable financial burden on Plaintiff, an indigent claimant, thereby creating a risk that Plaintiff would effectively be denied any forum to pursue his claims. Here, Article 6 of the Arbitration Agreement provides: "The expenses and fees of the arbitrator shall be apportioned equally among all parties except as otherwise required by law." (Arbitration Agreement, Article 6.) Although the Agreement includes the qualifying phrase "except as otherwise required by law," it nonetheless expressly contemplates equal allocation of arbitration costs between the parties. California courts have recognized that arbitration provisions are substantively unconscionable where the anticipated costs of arbitration would, in practice, be
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		unaffordable or would substantially deter a plaintiff from pursuing claims. (See <i>Sanchez v. Superior Court</i>, <i>supra</i>, 108 Cal.App.5th at pp. 628-630; <i>Sanchez v. Valencia Holding Co., LLC</i> (2015) 61 Cal.4th 899, 920; <i>Haydon v. Elegance at Dublin</i> (2023) 97 Cal.App.5th 1280, 1291.) As explained in <i>Sanchez v. Superior Court</i>, <i>supra</i>, 108 Cal.App.5th at p. 624: A party's inability to pay arbitral fees and costs can preclude enforceability of an arbitration agreement because the high fees and costs would render the agreement unconscionable. (See <i>Gutierrez v. Autowest, Inc.</i> (2003) 114 Cal.App.4th 77, 90, 7 Cal.Rptr.3d 267 (<i>Gutierrez</i>) [“[I]t is substantively unconscionable to require a consumer to give up the right to utilize the judicial system, while imposing arbitral forum fees that are prohibitively high”].) The high arbitral fees and costs also can provide a basis for relief from an arbitration that has been ordered. If a party is unable to pay the fees and costs, the other party “can elect to either pay that [party's] share of the arbitration cost and remain in arbitration or waive its right to arbitrate that [party's] claim.” (<i>Roldan v. Callahan & Blaine</i> (2013) 219 Cal.App.4th 87, 96, 161 Cal.Rptr.3d 493 (<i>Roldan</i>).) A party seeking relief on either ground may proceed via writ. (See <i>Zembsch v. Superior Court</i> (2006) 146 Cal.App.4th 153, 160, 53 Cal.Rptr.3d 69 [“writ review of orders compelling arbitration is proper . . . if the arbitration would appear to be unduly time consuming or expensive”]; accord, <i>Parada v. Superior Court</i> (2009) 176 Cal.App.4th 1554, 1567, 98 Cal.Rptr.3d 743 (<i>Parada</i>) [“In this case, the high cost of arbitrating before a three-judge panel at JAMS and the amount of time necessary to complete arbitration justify reviewing the order compelling arbitration by writ of mandate”].) Plaintiff has presented evidence that arbitration in this matter could require substantial arbitrator time and fees, potentially ranging from approximately \$16,665 to \$25,000. (Connaughton Decl., ¶¶ 2-4.) Such costs would be prohibitively expensive for Plaintiff, who attests he receives approximately \$500 to \$575 per month in Social Security benefits and approximately \$289 in EBT benefits and lacks sufficient funds to pay arbitration costs. (Magana Decl., ¶¶ 8-10.) Thus, the Arbitration Agreement appears to be substantively unconscionable. On the present record, the Court finds that the combination of circumstances surrounding the execution of the Arbitration Agreement and the potentially prohibitive arbitration costs supports a finding that the Arbitration Agreement is unenforceable due to unconscionability. Moreover, requiring an indigent party to bear unaffordable arbitration costs may effectively deprive that party of any forum to resolve his claims, contrary to California’s strong public policy favoring access to justice regardless of financial means. (<i>Roldan v. Callahan & Blaine</i> (2013) 219 Cal.App.4th 87, 95-96 (<i>Roldan</i>).) Under <i>Roldan</i>, where a party is unable to afford arbitration fees and costs, the opposing party must either agree to bear those costs or waive its right to compel arbitration. (<i>Id.</i> at p. 96.) Thus, even if the Arbitration Agreement were otherwise enforceable, Defendant cannot compel arbitration without either agreeing to bear Plaintiff’s share of the arbitration fees and costs or waiving arbitration altogether. Here, there is no evidence Defendant has agreed to do so. Accordingly, Defendant 1030 Warner Avenue I Opco LLC dba South Coast Post Acute’s petition to compel arbitration is DENIED.
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		Moving Party to give notice.
52	De La O Ojeda vs. 2100 E 4th St 92705 LLC 24-01398443	Motion for Leave to File Cross Complaint The Motion for Leave to File a Cross-Complaint brought by Defendant 2100 E. 4th St 92705 LLC is GRANTED, pursuant to Code of Civil Procedure section 428.50. Defendant seeks leave to file a Cross-Complaint against the Consulate of the United Mexican States in Santa Ana, seeking: (1) Equitable Indemnity; (2) Apportionment of Fault; (3) Express Indemnity; and (4) Declaratory Relief. (§3 of Arnall Declaration and Exhibit 1 thereto). The proposed Cross-Complaint specifically identifies the instant action and asserts proposed Cross-Defendant shares liability for the injuries sustained by Plaintiff. (See ¶2, ¶7, ¶10 and ¶15-¶16 of Proposed Cross-Complaint [Exhibit 1 of Arnall Declaration]). Per Counsel, “[t]he basis of the proposed cross-complaint is contractual indemnity and defense owed by the Consulate pursuant to the terms of the written lease entered into between Defendant and the Consulate....” (¶5 of Arnall Declaration). “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) “An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) Based on the above, the proposed pleading qualifies for leave pursuant to Code of Civil Procedure section 428.10, subdivision (b)(1). Additionally, as no prejudice is apparent from the request, leave to amend is GRANTED. Defendant shall separately file and serve their Proposed Cross-Complaint (¶3 of Arnall Declaration and Exhibit 1 thereto), within 10 days of this order.
53	Mirzadeh vs. Sandoval 25-01507072	Demurrer to Complaint & Motion to Quash Service of Summons Demurrer to Complaint Defendant Capital Aspects Limited Liability Co. (“Capital Aspects”) demurs to the first and second causes of action asserted in the Complaint filed by Moshen Mirzadeh. The demurrer is SUSTAINED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)

First Cause of Action for Undue Influence and/or Lack of Capacity

The Complaint alleges Capital Aspects engaged in conduct amounting to undue influence over Ghasem Mirzadeh's ("Decedent") within the meaning of Welfare and Institutions Code section 15610.70. (Compl. ¶ 31.) The Complaint specifically identifies actions by Defendants Soheyra Sandoval, Zahra Mirzadeh, Syed Ahmad Hashemian, and Farkhondeh Mirzadeh that constitute "excessive persuasion" that overcame decedent's free will when decedent was ill, medicated, and mentally impaired. (*Id.* at ¶¶ 30-31.)

"Undue influence" is defined as "excessive persuasion that causes another person to act or refrain from acting by overcoming that person's free will and results in inequity." (Welf. & Inst. Code, § 15610.70, subd. (a).) In determining whether a result was produced by undue influence, section 15610.70 directs courts to consider: (1) the victim's vulnerability; (2) the influencer's apparent authority; (3) the tactics used by the influencer; and (4) the inequity of the result. (Welf. & Inst. Code, § 15610.70, subd. (a)(1)-(4).) The Complaint does not allege Capital Aspects exerted any authority or used any tactics to persuade decedent to act. The demurrer is sustained to the first cause of action.

Second Cause of Action for Financial Elder Abuse

The Complaint alleges Capital Aspects committed financial elder abuse by taking, assisting, or retaining property of an elder by means of undue influence and wrongful appropriation. (Compl. ¶ 44.) Plaintiff identified particular actions taken by Defendants Soheyra Sandoval, Zahra Mirzadeh, Syed Ahmad Hashemian, and Farkhondeh Mirzadeh. (*Id.*)

Financial abuse of an elder occurs when a person "[t]akes, secretes, appropriates, obtains, or retains ... real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70." (Welf. & Inst. Code, § 15610.30, subd. (a)(3).) The Complaint does not allege any acts of undue influence by Capital Aspects. The demurrer is sustained as to the second cause of action.

Defendant Capital Aspects Limited Liability Co. to give notice.

Motion to Quash Service of Summons

Defendant Farkhondeh Mirzadeh's motion to quash service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh is DENIED.

A court lacks jurisdiction over a defendant if there has not been proper service of process upon that defendant. (See *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) Therefore, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her" (Civ. Proc. Code, § 418.10, subd. (a); see *Board of Supervisors v. Superior Court* (1994) 23 Cal.App.4th 830, 855, fn. 4.)

		Generally, “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991; see also <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [same].) However, this burden shifts when a properly executed proof of service has been filed. “The return of a [registered] process server [] upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647); see <i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) On November 19, 2025, after the instant motion was filed, Plaintiff filed a properly executed proof of service showing service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh via personal service. (ROA 39.) Katharyne Davis is a registered California process server. (<i>Id.</i>) Davis declares under penalty of perjury under the laws of the State of California that she personally delivered the Summons and Complaint to Defendant Farkhondeh Mirzadeh. (<i>Id.</i>) Plaintiff’s properly executed proof of service showing service of the Summons and Complaint on Defendant Farkhondeh Mirzadeh creates a rebuttable presumption that service was proper. (<i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.”].) Defendant Farkhondeh Mirzadeh declares that she did not receive two copies of the notice and acknowledgement of receipt and that she did not execute a written acknowledge of receipt of summons and return it to Plaintiff. (Farkhondeh Mirzadeh Decl. ¶¶ 4-5 [ROA 35].) This is insufficient to rebut the presumption of proper personal service of the Summons and Complaint. The motion to quash service of summons and complaint is denied. Plaintiff to give notice.
54	Johnson vs. Darden Restaurants, Inc. 23-01334261	Motion to Set Aside/Vacate Default The Motion to Set Aside Default brought by Defendant Christopher Zarate is DENIED as MOOT. The motion seeks to set aside a default entered against Defendant on December 2, 2025; however, no default is reflected in the record of this action. While the record indicates Plaintiff submitted a document for filing on December 2, 2025, this filing was rejected on December 10, 2025, with the stated reason being: “A motion was filed and set for hearing by the defendant.” (ROA No. 127.) The referenced motion was a Motion to Quash, which was filed by Defendant on August 21, 2025 (well in advance of the attempted default) and subsequently denied on January 16, 2026. (ROA No. 146.) Following the hearing on the Motion to Quash, Defendant’s Answer was accepted for filing on February 4, 2026. (ROA No. 149.) The continued presence of this motion on the Court’s calendar reflects multiple failings by Counsel.

		More than five months have passed since the Request for Entry of Default was rejected (ROA No. 127.) More than three months have passed, since Defendant's Answer was accepted for filing. (ROA No. 149.) While "Defendants engaged in multiple attempts to meet and confer with Plaintiff's counsel to stipulate to set-aside the entry of default," all such attempts pre-date rejection of the purported default filing. (§2 of Baldwin Declaration.) Defense Counsel apparently ceased their efforts to communicate with Plaintiff (or to review the electronic record of this action), after December 4, 2025. Plaintiff's Counsel, in turn, opted against communicating the rejection of the filing to Defendant. Consequently, this motion remained on the Court's already congested calendar, delaying the hearing of another, perhaps meritorious motion. In light of the above failings, the Court orders Counsel for Plaintiff Ryne Osborne and Counsel for Defendant Zarate, Rudie Baldwin, to read and review the OCBA's Civility Guidelines, available on the court website at: https://www.occourts.org/forms-filing/rules-court
55	Zinchevsky vs. Zinchevsky 25-01524036	Demurrer to Amended Complaint The Demurrer brought by Defendant Steven Zinchevsky is SUSTAINED, with leave to amend, as to the First through Fourth Causes of Action. Additionally, Defendant's Request for Judicial Notice (ROA No. 82) is GRANTED, pursuant to Evidence Code section 452, subdivision (d). Initially, in demurring to Plaintiff's claims, Defendant offers <i>multiple</i> facts, without offering citation to either the First Amended Complaint or judicially noticeable matters. (See Demurrer: 4:25-5:17.) Defense Counsel is reminded that demurrers consider only the facts alleged in the complaint and matters which may be judicially noticed. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Additionally, Counsel is reminded that the Court will not independently search the complaint or judicially noticeable material, to find support for factual statements made within a demurrer: "We are not required to search the record to ascertain whether it contains support for [Defendant's] contentions." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 545.) The portion of the Demurrer which seeks a plea in abatement is OVERRULED: To obtain a statutory plea in abatement absolute identity of the parties, causes of action and remedies is required. (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 788; See also <i>People ex rel. Garamendi v. American Autoplan, Inc.</i> (1993) 20 Cal.App.4th 760, 770.) Here, as Plaintiff's Probate Petition seeks relief under Probate Code sections 17200, 850 and 859 (See Exhibit 2 of RJN) and, as the instant civil action asserts claims for Financial Elder Abuse, Conversion, Theft, Constructive Trust, Breach of Fiduciary Duty, Negligence, and Aiding and Abetting, no absolute identity is apparent. While Defendant asserts "judgment in the probate case would preclude a determination of the Amended Complaint in the civil case" (Demurrer: 8:15-18 [ROA No. 84]), this statement is made without any further analysis or citation to authority. At most, this portion of the demurrer offers general citations to "Pet"

		(which <i>appears</i> to refer to the Petition attached as Exhibit 2 to Defendant’s RJN) and the First Amended Complaint, documents which total over 250 pages. The Court declines the invitation to independently examine the pleading papers for similarities. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) Similarly, the portion of the Demurrer which asserts the rule of exclusive concurrent jurisdiction is OVERRULED, as the rule applies where “two superior courts have concurrent jurisdiction” and not where, as here, both actions are pending in the same court. (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 786-787.) While “[t]he superior court is divided into departments, including the probate department, as a matter of convenience...the subject matter jurisdiction of the superior court is vested as a whole.” (<i>Estate of Bowles</i> (2008) 169 Cal.App.4th 684, 695.) As to both the civil and probate matters, jurisdiction is vested in the Orange County Superior Court and coordination between the proceedings is possible. Nonetheless, the Demurrer to the First through Fourth Causes of Action is SUSTAINED, as Plaintiff has insufficiently pled standing. “Standing is the threshold element required to state a cause of action and, thus, lack of standing may be raised by demurrer.” (<i>Robinson v. Southern Counties Oil Co.</i> (2020) 53 Cal.App.5th 476, 481.) With respect to the First Cause of Action, “after the death of the elder or dependent adult, the right to commence or maintain an action shall pass to the personal representative of the decedent.” (Welf. & Inst. Code, § 15657.3, subd. (d)(1).) “If the personal representative refuses to commence or maintain an action” then “[a]n intestate heir whose interest is affected by the action,” “[t]he decedent’s successor in interests, as defined in Section 377.11 of the Code of Civil Procedure” or “[a]n interested person, as defined in Section 48 of the Probate Code,” “shall have standing to commence or maintain an action for elder abuse.” (Welf. & Inst. Code, § 15657.3, subd. (d)(1)(A)-(C) and subd. (d)(2).) Per the Complaint, Janie L. Mulrain “is the Successor Trustee of the Zinchevsky Trust and the Personal Representative of Mary’s Estate.” (¶31 of FAC; See also ¶24, ¶42 of FAC [ROA No. 62].) While Plaintiff asserts standing under Welfare & Institutions Code section 15657.3, subdivision (d)(2), the First Amended Complaint does not allege the personal representative refused to commence or maintain an action. Instead, the complaint concedes that Ms. Mulrain has filed a petition requesting instructions from the probate court. (¶24 and ¶77 of FAC.) At best, Plaintiff asserts Ms. Mulrain is handling the petition for instructions poorly, asserting she omitted “discussion of charges that occurred on Steven’s own banking cards” and “conducted no investigation or discovery beyond what Ryan provided to her.” (¶78 and ¶82 of FAC.)
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		Per the First Amended Complaint, however, the above deficiencies led to Plaintiff “filing a Declaration ‘in support’ of the Petition,” within the probate action, which included additional evidence. (¶86-¶87 of FAC.) Plaintiff also alleges he filed a second petition of his own, which requests “court supervision of Trustee Mulrain’s administration” and examination of the “evidence regarding Steven’s expenditure of Mary’s assets...to determine whether and in what amount Mulrain should be directed to recover funds from Steven....” (¶88 of FAC.) Per the First Amended Complaint, all the above pending probate petitions were continued to April 28, 2026. (¶91 of FAC.) Per Defendant, the Petition for Instructions by Ms. Mulrain is presently set to be heard on September 15, 2026. (Reply: 5:14-16 [ROA No. 97].) Based on the above, it is not yet clear whether the personal representative of Mary Catherine Zinchefsky will pursue claims on behalf of the Estate and Trusts. Consequently, Plaintiff has not alleged sufficient facts to support standing, with respect to the First Cause of Action. In asserting standing exists, Plaintiff cites <i>Estate of Lowrie</i> (2004) 118 Cal.App.4th 220; however, this action is distinguishable. In <i>Lowrie</i>, it was the individual appointed as both trustee and personal representative, who was alleged to have committed elder abuse. (<i>Id.</i> at p. 227-228.) The Court invoked Probate Code section 259, to find standing on behalf of the plaintiff therein: “Probate Code section 259 is a forfeiture statute that deems abusers of elder or dependent adults to have predeceased a deceased, abused elder or dependent adults.” (<i>Id.</i> at p. 228.) The Court explained: “[I]f Sheldon [the alleged abuser] predeceased decedent, Lynelle would become the successor trustee and the successor beneficiary to the remainder. Thus, Lynelle would become the person entitled to succeed to decedent’s estate and Lynelle would have standing to bring this case.” (<i>Id.</i> at p. 229.) The Court further explained that standing pursuant to Probate Code section 259 was necessary: “If abusers gain control of an estate, they may not use a restrictive interpretation of standing as an escape hatch.” (<i>Id.</i> at p. 231.) In contrast to the above, there are no allegations the relevant trustee and personal representative - Janie L. Mulrain – engaged in elder abuse. Consequently, Probate Code section 259 has no application. With respect to the remaining claims asserted against Defendant Steven Zinchefsky, Plaintiff alleges he brings his claims “in his individual capacity as a beneficiary” as well as “derivatively for the Zinchefsky Trust and/or Estate....” (¶6 and ¶133 of FAC [ROA No. 62].) The Complaint alleges harm to the Estate and Trust, only. (See ¶104, ¶115, ¶120, ¶122, ¶129 and ¶143 of FAC [ROA No. 62].) “A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest...and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.30.) As noted above, Janie L. Mulrain is the personal representative of Mary Zinchefsky’s Estate. (¶31 of FAC; See also ¶24, ¶42 of FAC [ROA No. 62].) Additionally, “[a]t common law, where a cause of action is prosecuted on behalf of an express trust, the trustee is the real party in interests because the trustee has
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		legal title to the cause.” (<i>Saks v. Damon Raike & Co.</i> (1992) 7 Cal.App.4th 419, 427.) “The corollary to this rule is that the beneficiary of a trust generally is not the real party in interest and may not sue in the name of the trust. A trust beneficiary has no legal title or ownership interests in the trust assets; his or her right to sue is ordinarily limited to the enforcement of the trust, according to its terms.” (<i>Ibid.</i>) “Thus, absent special circumstances, an action prosecuted for the benefit of a trust estate by a person other than the trustee is not brought in the name of a real party in interests and is demurrable.” (<i>Ibid.</i>) “However, ‘where a trustee cannot or will not enforce a valid cause of action that the trustee <i>ought</i> to bring against a third person, a trust beneficiary may seek judicial compulsion against the trustee. In order to prevent loss of or prejudice to a claim, the beneficiary may bring an action in equity joining the third person and the trustee.’” (<i>Pillsbury v. Karmgard</i> (1994) 22 Cal.App.4th 743, 753-754.) Similarly, “[t]he beneficiary can maintain a suit in equity against the tortfeasor only if the trustee improperly refuses or neglects to bring an action, or if the trustee cannot be subjected to the jurisdiction of the court, or if there is a vacancy in the office of trustee.” (<i>Estate of Bowles</i> (2008) 169 Cal.App.4th 684, 692.) As noted above, Janie L. Mulrain “is the Successor Trustee of the Zinchefsky Trust.” (¶31 of FAC; See also ¶24, ¶42 of FAC [ROA No. 62].) Additionally, the allegations in the Complaint indicate it is not yet clear whether Ms. Mulrain will pursue the claims sought to be asserted herein by Plaintiff. (See ¶24, ¶77, ¶78, ¶82, ¶86-¶88 and ¶91 of FAC [ROA No. 62].) Consequently, Plaintiff has not alleged sufficient facts to support standing, with respect to the Second through Fourth Causes of Action. While the above defects are potentially curable, it does not appear that Plaintiff can allege sufficient facts to demonstrate the personal representative and trustee has improperly failed to act, until resolution of the Petition for Instructions, currently pending within the Probate Proceeding. Based on representations from Counsel, this Petition is not scheduled to be heard until September 15, 2026. (Reply: 5:14-16 [ROA No. 97].) Rather than provide Plaintiff with four months leave to amend, the Court is inclined to stay this action, pending resolution of the above, pursuant to its inherent authority. (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 141.) The Court will set a status conference for October 2, 2026, at 8:30 a.m. in Department C16. Plaintiff is granted 20 days leave to amend; however, this 20-day period will not commence until the stay is lifted.
56	BMW Bank of North America vs. Serna 25-01526562	Application/Request & Motion - Other Plaintiff BMW BANK OF NORTH AMERICA, a Utah industrial bank, by and through its servicer, BMW FINANCIAL SERVICES NA, LLC, a Delaware limited liability company’s unopposed Application for Writ of Possession against Defendants Shelley M. Serna and Manuel T. Villagrana II for the 2021 BMW X7 M50i motor vehicle, Serial No. 5UXCX6C08M9F15693 (the “Vehicle”) is GRANTED.

		The Court ORDERS Defendants Shelley M. Serna and Manuel T. Villagrana II to turn over to Plaintiff the Vehicle which is believed to be located at Extra Space Storage, Space Number J373, at 15875 Laguna Canyon Rd., Irvine CA 92618. The failure to turn over the Vehicle to Plaintiff may subject Defendants to being held in contempt of court. The Court waives the requirement for Plaintiff to post an undertaking since the amount owed is higher than the estimated value of the Vehicle. Defendants' re-delivery bond shall be \$95,000. Moving Party is to give notice.
58	Iwanaga vs. Global Financial Data Incorporated 19-01094012	Motion for Pretrial Determination of Admissibility of Evidence Defendant and Cross-Complainant Global Financial Data Incorporated ("GFD"), Defendant Michelle Huff Kangas, and Defendant Bryan Taylor's motion for an order to exclude evidence of Kangas's alleged comments about her criminal case or conviction for any purpose is DENIED. "Except as otherwise provided by statute, all relevant evidence is admissible." (Evid. Code, § 351.) Relevant evidence is that which has "any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action." (Evid. Code, § 210.) Defendants contend Kangas's alleged comments about her criminal case and conviction are irrelevant or marginally because the comments were not directed at Plaintiffs and that any alleged harassment was not based on sex. Plaintiffs Kevin Iwanaga, Lindsay Amendola, and Pierre Gendreau allege they were subjected to a sexually hostile work environment in violation of the California Fair Employment and Housing Act ("FEHA"). FEHA "recognize[s] two theories of liability for sexual harassment claims ... '... quid pro quo harassment, where a term of employment is conditioned upon submission to unwelcome sexual advances ... [and] hostile work environment, where the harassment is sufficiently pervasive so as to alter the conditions of employment and create an abusive work environment.' " (<i>Herberg v. California Institute of the Arts</i> (2002) 101 Cal.App.4th 142, 149; <i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1043.) "[A] hostile work environment sexual harassment claim requires a plaintiff employee to show she was subjected to sexual advances, conduct, or comments that were (1) unwelcome [citation]; (2) because of sex [citation]; and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment [citations]. In addition, she must establish the offending conduct was imputable to her employer." (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 279.) "To plead a cause of action for [hostile work environment] sexual harassment, it is only necessary to show that gender is a substantial factor in the discrimination, and that if the plaintiff had been a man she would not have been treated in the same manner. Accordingly, it is the disparate treatment of an employee on the basis of sex-not the mere discussion of sex or use of vulgar language-that is the essence of a sexual harassment claim." (<i>Id.</i> at p. 280 [internal quotation marks and citations omitted].) " "[W]hether an environment is 'hostile' or 'abusive' can be determined only by looking at all the circumstances [including] the frequency of the

		discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance.” [Citation.]’ [Citation.]” (<i>Lyle, supra</i>, 38 Cal.4th at p. 283.) Sexual conduct that involves or is aimed at persons other than the plaintiff is considered less offensive and severe than conduct that is directed at the plaintiff. (See <i>Gleason v. Mesirow Financial Inc.</i> (7th Cir.1997) 118 F.3d1134, 1144 [“the impact of ‘second-hand harassment’ is obviously not as great as the impact of harassment directed at the plaintiff”]; <i>Black v. Zaring Homes, Inc.</i> (6th Cir.1997) 104 F.3d 822, 826 [fact that most comments were not directed at the plaintiff weakened her harassment claim]; <i>Jackson v. Racine County</i> (E.D.Wis.2005) 2005 WL 2291025, *7 [comments made to the plaintiffs about the appearance of other female employees bear less weight than the comments directed toward the plaintiffs themselves].) A hostile work environment sexual harassment claim by a plaintiff who was not personally subjected to offensive remarks and touchings requires ‘an even higher showing’ than a claim by one who had been sexually harassed without suffering tangible job detriment: such a plaintiff must ‘establish that the sexually harassing conduct permeated [her] direct work environment.’ (<i>Fisher, supra</i>, 214 Cal.App.3d at p. 610, 262 Cal.Rptr. 842.)” (<i>Lyle, supra</i>, 38 Cal.4th at p. 284–285.) “[A] hostile work environment sexual harassment claim is not established where a supervisor or co-worker simply uses crude or inappropriate language in front of employees or draws a vulgar picture, without directing sexual innuendos or gender-related language toward a plaintiff” (<i>Id.</i> at p. 282.) In <i>Lyle</i>, a female writers’ assistant sued three male writers and the entities involved in the production of the television show <i>Friends</i> for hostile work environment sexual harassment. The plaintiff testified that no one in the workplace ever said anything sexually offensive about her directly to her, asked her on a date, propositioned her, demanded sexual favors, or physically threatened her. (<i>Lyle, supra</i>, 38 Cal.4th at p. 275.) However, Lyle complained that a number of sexually offensive acts occurred in the workplace, including the writers talking about their sexual preferences and experiences, creating sexual images in a “coloring book” during meetings and leaving the book around the workplace, making masturbatory gestures, and making offensive sexual comments about two of the actresses on the show. (<i>Id.</i>) The California Supreme Court concluded that the conduct in Lyle's workplace did not amount to hostile environment sexual harassment. The court held, “Based on the totality of the undisputed circumstances, particularly the fact the <i>Friends</i> production was a creative workplace focused on generating scripts for an adult-oriented comedy show featuring sexual themes, we find no reasonable trier of fact could conclude such language constituted harassment directed at plaintiff because of her sex within the meaning of the FEHA. Furthermore, to the extent triable issues of fact exist as to whether certain offensive comments were made about women other than plaintiff because of their sex, we find no reasonable trier of fact could conclude these particular comments were severe enough or sufficiently pervasive to create a work environment that was hostile or abusive to plaintiff in violation of the FEHA.” (<i>Lyle, supra</i>, 38 Cal.4th at p. 272.) “FEHA’s prohibitions are not a ‘civility code’ and are not designed to rid the workplace of vulgarity. [Citations.] To be actionable, the conduct must be extreme, but there is no requirement that the employee endure sexual harassment until his or her psychological well-being is so spent that the employee requires psychiatric assistance.” (<i>Sheffield v. Los Angeles County Dept. of Social Services</i> (2003) 109 Cal.App.4th 153, 161–162.)
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		Here, Defendant Michelle Huff Kangas allegedly made comments about her criminal conviction for sexual offenses in meetings, discussing the case in graphic detail. (Simon Decl. [ROA 1143] ¶ 6, Exh. 5, Iwanaga Depo. Tr. at 167:1-22; Simon Decl. ¶ 7, Exh. 6, Amendola Depo. Tr. at 572:21-574:9, 574:21-575:13; Simon Decl. ¶ 8, Exh. 7, Gendreau Depo. Tr. at 129:2-9.) Kangas also spoke to Plaintiffs individually about the details of her criminal case. (Simon Decl. [ROA 1143] ¶ 5, Exh. 4, Iwanaga Depo. Tr. at 532:2-12; Bordin-Wosk Decl. [ROA 1149] ¶ 6, Exh. 5, Gendreau Depo. Tr. at 188:14-189:4.) Additionally, Kangas allegedly told offensive jokes and committed harassing acts directed at Plaintiffs. (Simon Decl. [ROA 1143] ¶ 8, Exh. 7, Gendreau Depo. Tr. at 185:1-11; Simon Decl. ¶ 7, Exh. 6, Amendola Depo. Tr. at 593:2-15; Bordin-Wosk Decl. [ROA 1149] ¶ 2, Exh. 1, Iwanaga Depo. Tr. p. 1, lns. 7-15; p. 4 ln. 24 to p. 5 ln. 16; Bordin-Wosk Decl. ¶ 3, Exh. 2, Iwanaga Depo. Tr. at 181:5-182:15; Bordin-Wosk Decl. ¶ 6, Exh. 5, Gendreau Depo. Tr. at 198:5-25, 202:10-211:10; Bordin-Wosk Decl. ¶ 8, Exh. 7, Gerrells Depo. Tr. at 48:18-49:12.) Unlike <i>Lyle</i>, nothing about the nature of the work at GFD put the employees in the position of discussing matters that were sexual in nature. “ “[T]he objective severity of harassment should be judged from the perspective of a reasonable person in the plaintiff’s position, considering ‘all the circumstances.’ [Citation.] ... [T]hat inquiry requires careful consideration of the social context in which particular behavior occurs and is experienced by its target The real social impact of workplace behavior often depends on a constellation of surrounding circumstances, expectations, and relationships which are not fully captured by a simple recitation of the words used or the physical acts performed. Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing and roughhousing ... and conduct which a reasonable person in the plaintiff’s position would find severely hostile or abusive.” [Citation.]’ ” (<i>Id.</i> at p. 283.) Although Kangas’s alleged criminal case comments did not involve and were not directed at Plaintiffs, the remarks were sexual in nature and contributed to the overall sexually charged atmosphere in the workplace. In contrast to <i>Lyle</i>, Plaintiffs have alleged harassment that was directed at them personally. On the record before the court, a reasonable trier of fact could conclude that the sexually harassing conduct permeated the GFD work environment. Kangas’s criminal case comments are relevant. A trial court may exclude otherwise relevant evidence when its probative value is substantially outweighed by concerns of undue prejudice, confusion, or consumption of time. (Evid. Code, § 352; <i>People v. Riggs</i> (2008) 44 Cal.4th 248, 290.) “The prejudice which exclusion of evidence under Evidence Code section 352 is designed to avoid is not the prejudice or damage to a defense that naturally flows from relevant, highly probative evidence. ‘[A]ll evidence which tends to prove guilt is prejudicial or damaging to the defendant’s case. The stronger the evidence, the more it is “prejudicial.” The “prejudice” referred to in Evidence Code section 352 applies to evidence which uniquely tends to evoke an emotional bias against the defendant as an individual and which has very little effect on the issues. In applying [Evidence Code] section 352, “prejudicial” is not synonymous with “damaging.” ’ [Citation.]” (<i>People v. Karis</i> (1988) 46 Cal.3d 612, 638.) “ “In other words, evidence should be excluded as unduly prejudicial when it is of such nature as to inflame the emotions of the jury, motivating them to use the information, not to logically evaluate the point upon which it is relevant, but to reward or punish one side because of the jurors’ emotional reaction. In such a circumstance, the evidence is unduly prejudicial
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		because of the substantial likelihood the jury will use it for an illegitimate purpose.” ’ ’ (People v. Scott (2011) 52 Cal.4th 452, 491.) In striking the balance between the probative and the unduly prejudicial, the court “should allow evidence and argument on emotional though relevant subjects that could provide legitimate reasons to sway the jury.... On the other hand, irrelevant information or inflammatory rhetoric that diverts the jury’s attention from its proper role or invites an irrational, purely subjective response should be curtailed.” (People v. Haskett (1982) 30 Cal.3d 841, 864.) Here, Kangas’s criminal case comments are relevant and should not be excluded. (People v. Lamb (2024) 16 Cal.5th 400, 425 [“Evidence Code section 352 speaks in terms of <i>undue</i> prejudice. Unless the dangers of undue prejudice, confusion, or time consumption substantially outweigh the probative value of relevant evidence, a[n] [Evidence Code] section 352 objection should fail.”] [internal quotation marks and citations omitted].) The court reserves its discretion to include a limiting instruction. Plaintiffs to give notice.
59	Holler vs The Horizons Community Association 21-01222398	Motion for Summary Judgment and/or Adjudication CONTINUED TO JUNE 4, 2026, AT 10:00 AM
60	Hernandez vs. Sol Acceptance, LLC 22-01277715	Motion for Summary Judgment and/or Adjudication OFF CALENDAR due to the filing of the Notice of Settlement on 5/21/2026, ROA 222